

## 24SMCV03557 24SMCV03557

County: los-angeles

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These are two motions to compel further responses. They were filed by defendant. Defendant contends that it served discovery

on December 18, 2025, and additional discovery on January 6, 2026. Defendant states that plaintiff asked for an extension on the discovery. Defendant states that it agreed to extend time on the original discovery to February 2, 2026, but plaintiff wanted more additional time. The court ultimately gave plaintiff relief on an ex parte application but ordered the discovery responses to be served within 30 days of February 3, 2026.

Responses were purportedly served on March 5, 2026, but defendant states that they were objection only responses and does not agree that they were timely served. Defendant sent a meet and confer letter to plaintiff. Plaintiff

apparently left a message and defendant agreed to meet and confer, but according to the defense, plaintiff never called back and never met and conferred. In opposition, plaintiff

states that the motions are procedurally improper because they the two relating to interrogatories should not be brought together. Plaintiff further states that he served proper responses on March 5, 2026, so to the extent defendant contends that plaintiff failed to comply with the court's order, the defense is wrong. Accordingly, plaintiff argues, the proper motion is a motion to compel further, not a motion to compel. And now a motion to compel would be time barred because the 45 day period to bring such a motion has passed. Further, plaintiff says, the responses were proper. Finally, plaintiff states that it has offered to serve supplemental responses so as to incorporate the general objections into each response. And plaintiff seeks sanctions.

In reply, defendant states that that the most recent responses were in fact not served until May 29, 2026, and plaintiff still has

not acknowledged defendant's offer to meet and confer. More troubling, defendant states that it has a technology expert who has checked the emails received by defendant to see if there was an email from plaintiff on March 5, 2026, and that no such email was found. According to defendant, plaintiff's election to provide only a PDF of the metadata is not helpful because such a document is easy to manipulate. Defendant suggests that native files be produced by everyone, including metadata, so the court can see who the liar is. Further, defendant contends that the court should impose an evidentiary sanction because it is automatic.

The parties need to stop this. The court is not going to hold a trial as to who is manipulating metadata. The court does not need to do so. The court has reviewed the discovery responses.

Assuming, without deciding, that they were served on March 5, 2026 (and therefore timely), there remains a problem.

They are, as defendant states, objection only responses. There is nothing improper about such responses—if, but only if, each objection is well taken such that the question cannot be answered. However, the

objections here, even assuming proper format, were not of that ilk. They are in patent bad faith. For example, RFP 1 is for documents showing

each request plaintiff made to review HOA records and the response. The response was an incorporation of the general objections. It also included the

assertion that the request was overly broad (it wasn't) was unintelligible by using the phrase "breached the Governing Documents" (which was not in this RFP), and was unduly burdensome and oppressive (it wasn't). There was an objection that defendant had not shown a "compelling need" for the discovery or that there was a less intrusive means to get it (which is not a valid objection). Plaintiff went on to object because it required him to make a compilation (it didn't) and that it requested information that could not be known pending further discovery (it didn't) and that plaintiff was still doing discovery and might find something later and might (or might not) supplement (which makes no sense). That objection is essentially repeated for each RFP. Special Interrogatory 1 is to

identify every communication plaintiff made to request a review of the HOA's records. Plaintiff responded by

objecting that defendant already had the information so the request was unduly burdensome and that the used of defined terms made the request unintelligible. The burdensomeness objection is ill taken. Even if

defendant ought to have those records, the defendant is entitled to know what plaintiff has to be sure that there are no surprises at trial. And the use of defined terms did not make the interrogatories unintelligible. There is also an overbreadth objection because the interrogatory was not bounded as to time or scope and was ambiguous and that this was not calculated to lead to admissible evidence. That is also improper. The interrogatories by their subject matter were bounded. Those objections were essentially the same for every interrogatory.

The bad faith is obvious and patent. The court had given plaintiff the extension sought on the theory that plaintiff would act in good faith. The court was apparently wrong about that and the court confesses to have being misled by the plaintiff into granting the request. Had the court known that plaintiff planned on abusing the order that the court had given, the court would have denied the emergency application for more time. Indeed, the application was made in bad faith because no additional time was needed to submit bad faith responses like the ones at issue.

Accordingly, the motions are GRANTED. Plaintiff will provide verified responses without objection within 10 court days.

Documents will be provided at the same time. The court is aware that 10 court days is short. That is deliberate. Plaintiff is playing games with the defense and games with the court. The request by defendant for sanctions is GRANTED in the amount of \$2480.00 for both motions combined. It is payable within 30 days to defense counsel. The court very much hopes that plaintiff will turn over a new leaf in this case and litigate properly.